



2025:AHC:179391-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 32847 of 2025

Smt. Shashi Lata Tiwari

.....Petitioner(s)

Versus

State Of U.P. And 4 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Rishi Upadhyay, Vijay Kumar Pandey
Counsel for Respondent(s)	:	C.S.C., Udit Chandra

Court No. - 3

HON'BLE SAUMITRA DAYAL SINGH, J.

HON'BLE INDRAJEET SHUKLA, J.

1. Heard Sri Rishi Upadhyay, learned counsel for the petitioner; Sri Udit Chandra, learned counsel for respondent nos. 4 and 5 and learned Standing Counsel for the State.

2. Challenge has been raised to the Recovery Certificate dated 14.07.2025 seeking to recover Rs. 1,07,144/- from the petitioner towards electricity dues.

3. Presently, it is not clear if assessment procedure has been fully complied. Petitioner claims no opportunity of hearing was given to them before the impugned demand came to be created.

4. In view of such facts, no useful purpose may be served in keeping such a petition pending or calling for counter affidavit at this stage. To the extent petitioner may not have been given opportunity of hearing, it is desirable that one opportunity is given to the petitioner before the Assessing Officer/respondent No. 4 under Clause 6.8 of the U.P. Electricity Supply Code 2005.

5. Accordingly, writ petition is **disposed of** with a direction, subject to the petitioner depositing Rs. 11,000/- towards the disputed demand within a period of one month, he may file appropriate application before respondent No. 4 within a further period of one week therefrom. Subject to such compliance, respondent No. 4 may proceed to deal with and decide petitioner's objection by a reasoned and speaking order, strictly in

accordance with law, after confronting the petitioner with all adverse material being relied against him and by giving opportunity of personal hearing as expeditiously as possible, preferably within a period of two months from the date of application being filed by the petitioner.

(Indrajeet Shukla,J.) (Saumitra Dayal Singh,J.)

October 9, 2025

Abhilash